

Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974

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State of Tamilnadu- Act

Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974

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India

Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974

Rule GUDALUR-JANMAM-ESTATES-ABOLITION-AND-CONVERSION-INTO-RYOTWARI-RULES-1974 of 1974

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Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974

Published vide Notification No. G.O. Ms. No. 695, Commercial Taxes and Religious Endowments Department, dated 7th December 1974 -SRO A/18/75

Published in Part III-Section 1(a) of the Tamil Nadu Government Gazette, dated 8th January 1975.

G.O. Ms. No. 695, Commercial Taxes and Religious Endowments Department, dated 7th December 1974 -SRO A/18/75. - In exercise of the powers conferred by section 60 of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Act, 1969 (Tamil Nadu Act

24 of 1969

), the Governor of Tamil Nadu hereby makes the following rules:-

1.

Short title.

- These rules may be called the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974.

2.

Definition.

- In these rules, unless the context otherwise requires,-

(1)

"Act" means the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Act, 1969 (Tamil Nadu Act 24 of 1969

);

(2)

"Authorised Officer" means the Assistant Settlement Officer having jurisdiction over the area or the Tahsildar of Gudalur taluk after the introduction of ryotwari settlement in that taluk;

(3)

"Form" means a form appended to these rules;

(4)

"Government Irrigation work" in respect of a land means the irrigation work (belonging to constructed, or maintained), by or on behalf of the Government under which the land has been registered as wet at the settlement;

(5)

"Section" means a section of the Act;

(6)

"Settlement dry assessment" in respect of a land means the dry assessment appropriate to the soil classification assigned to the land at the settlement;

(7)

"Settlement wet assessment" means the assessment on wet lands under the settlement notification appropriate to the soil classification assigned to the land at the settlement;

(8)

"Settlement estate assessment" in respect of a land means the estate assessment appropriate to the soil classification assigned to the land at the settlement;

(9)

"Settlement notification" in relation to a land means the settlement notification published under sub-section (1) of section 20 in respect of the janmam estate or part thereof in which the land is situated;

(10)

"Settlement Officer" includes the Assistant Settlement Officer or Settlement Tahsildar wherever the powers of the Settlement Officer have been delegated to the Assistant Settlement Officer or Settlement Tahsildar by the Settlement Officer in writing;

(11)

"Tahsildar" means the Tahsildar of Gudalur Taluk or any other officer of the rank of Tahsildar specially appointed in this behalf by the District Collector.

3.

Procedure for taking possession of a janmam estate.

(1)

The officer authorised by the Government to take possession of a janmam estates on their behalf under clause (d) of section 3, shall take charge of only such of the accounts, registers, pattas, muchilikas, maps, plans and other documents relating to the janmam estates, as are in his opinion necessary for the administration of the janmam estate. He shall prepare a detailed inventory of those documents in the presence of the janmi or any person authorised in writing by the janmi in that behalf and give a copy of such inventory to the janmi or his authorised representative. Certified copies of the documents shall be made and given to the janmi, if so required by him or by his authorised representative.

(2)

Where the officer referred to in sub-rule (1) has reason to believe that there are other documents in the possession or

custody of the janmi and is of the opinion that such documents are essential for the administration of the janmam estate, he may summon the janmi to produce, all such documents and the janmi shall be bound to produce them.

4.

Procedure for taking possession of land in a janmam estate.

(1)

Before taking possession of any land in a janmam estate in cases falling under the proviso to clause (d) of section 3, the Tahsildar shall examine whether any person or janmi holding the land is prima facie entitled to ryotwari patta in respect of that land or not.

(2)

If the Tahsildar considers that the occupant of a land on the appointed day is, prima facie entitled to ryotwari patta in respect of that land, he shall tentatively allow such occupation to continue, subject to the pay- merit of assessment on the extent occupied, payable prior to ryotwari settlement and subject to the condition that the payment of such assessment shall not confer any right of occupancy.

Explanation. - For the purpose of this rule, occupation for part of a fasli year shall be deemed to be occupation for the whole of a fasli year.

(3)

(a)

If the Tahsildar considers that the occupant of a land on the appointed day is, prima facie not entitled to ryotwari patta in respect of that land and that the occupation is objectionable, he shall cause a notice in Form No. 1 to be served on him calling upon him to show cause why he should not be dispossessed of the land.

(b)

The Tahsildar shall examine the representations, if any, made on the date fixed for the enquiry and, after such further enquiry as he may consider necessary, shall pass order, either holding that the occupant prima facie is entitled or is not entitled to ryotwari patta in respect of the land. If the Tahsildar considers that the occupant is prima facie not entitled to ryotwari patta and that the occupation is objectionable, he shall cause a notice in Form No. 2 to be served on the occupant.

(c)

On the expiry of the time allowed for filing an appeal or revision petition or, if an appeal or revision petition has been filed, after the disposal of such appeal or revision petition, and if the decision in the appeal or revision is that the occupant is prima facie not entitled to ryotwari patta in respect of the land, an officer not, lower in rank than a Revenue Inspector duly authorised in this behalf, may formally enter upon the land in question and take possession of it and record a certificate of the village officers and of at least an occupant of the village in which the janmam estate is situated that the land has been taken possession of by the Government.

(4)

If the decision is that the occupant of a land on the appointed day is, prima facie, not entitled to ryotwari patta in respect of that land, but that the occupation is not objectionable, the occupation may be allowed subject to the payment by the occupant of the assessment on the land payable prior to ryotwari settlement, until the ryotwari settlement of the land is effected under section 20 or until the land is required by the Government for any purpose, whichever is earlier. The payment of such assessment shall not confer on the occupant any occupancy right. Every decision of the Tahsildar in this regard shall be communicated to the occupant concerned in Form No. 3.

5.

Period within which appeal against the order under the proviso to section 3(d) can be filed.

(1)

Every appeal against an order under the proviso to clause (d) of section 3, for deciding the question whether a tenant or a janmi or a cultivator is prima facie entitled to a ryotwari patta in respect of a land or not, shall be referred to the Revenue Divisional Officer of the division within thirty days from the date of such order or within such further time as the Revenue Divisional Officer may, in his discretion, allow:

Provided that an order passed in appeal by the Revenue Divisional Officer shall be subject to revision by the District Collector and any order passed in revision by the District Collector shall be subject to a further revision by the [Board of Revenue]

[The Board of Revenue was abolished by the Tamil Nadu Board of Revenue Abolition Act, 1980 (Tamil Nadu Act

36 of 1980

). Now, Commissioner of Land Administration, vide G. O. Ms. No. 2675, Revenue, dated the 1st December 1980.]

:

Provided further that any such order passed in revision by the Commissioner of Land Administration shall be subject to a further revision by the Government either suo motu or on application.

(2)

A revision petition under sub-rule (1) above shall be preferred within 30 days from the date of communication of such order or within such further time as the authority may, in its discretion, allow.

6.

Revision petition to the Settlement Officer.

- Any person aggrieved by any of the orders, acts or proceedings of the Assistant Settlement Officer or the Officer who is exercising the powers delegated by the Settlement Officer in writing other than those in respect of which an appeal lies to the Tribunal, may prefer a revision petition to the Settlement Officer within thirty days from the date of service of the order or proceedings sought to be revised.

7.

Revision petition to the Director of Settlements.

(1)

Every petition under sub-section (2) of section 5 for cancellation or revision of any of the orders, acts or proceedings of the Settlement Officer, shall be preferred to the Director of Settlements within 30 days from the date of service of such orders or proceedings of the Settlement Officer:

Provided that the Director of Settlements may admit a petition preferred after the period aforesaid, if he is satisfied that the petitioner had sufficient cause for not preferring the petition within the said period.

(2)

Revision petition to the Commissioner, Land Administration.-Any person aggrieved by any of the orders, acts or proceedings of the Director of Settlements or of the District Collector including those passed, done or taken in the exercise of revisional powers may prefer a revision petition to the Commissioner, Land Administration.

(3)

Every such petition shall be preferred within thirty days from, the date of service of the order or proceedings of the Director of Settlements or of the District Collector, as the case may be:

Provided that the Commissioner, Land Administration may admit a petition preferred after the expiry or the period aforesaid, if he is satisfied that the petitioner has sufficient reason for not preferring the petition within the said period.

8.

Enquiry into claims under section 8, 9 or 10.

(1)

Every application for grant of ryotwari patta in respect of any land under section 8,9 or 10 shall be in Form No. 4 and shall be either presented in person or sent by registered post, to the Settlement Officer, within six months from the appointed day.

(2)

Every such application shall be signed and verified by the applicant and restricted to lands in the holdings in a single village.

(3)

If, in respect of any land, no person has applied for patta under sub-rule (1), the Settlement Officer shall proceed to enquire into the nature and history of the land suo motu and determine if any person is prima facie entitled to a ryotwari patta in respect of that land.

(4)

The Settlement Officer shall, then, fix a date for the enquiry and shall cause a notice in Form No. 5 to be served on each janmi or tenant or cultivator who has applied for ryotwari patta or who, in the opinion of the Settlement Officer, is prima facie entitled to a ryotwari patta, to produce any record or make any representation which he may wish to make at the enquiry. A copy of the notice shall also be sent to the Tahsildar of the Taluk.

(5)

The Settlement Officer shall also publish a notice in Form No. 6 requiring any person who has any objection to any of

the proposal to grant ryotwari patta, to file before him a statement of his objections, within a week from the date of the notice and also requesting all interested persons to be present at the enquiry either in person or through an authorised representative and make their representations. Copies of the notice shall also be affixed on the notice board of the offices of the Settlement Officer and of the Assistant Settlement Officer.

(6)

The date of the enquiry shall not be earlier than fifteen days from the date of the publication of the notice referred to in sub-rule (5).

(7)

The enquiry shall be summary. The Settlement Officer shall hear the parties and afford them a reasonable opportunity for adducing any oral or documentary evidence.

(8)

The decision of the Settlement Officer shall be published in Form No. 7. A copy of the decision shall be made available to the party concerned in person or sent to him by registered post. A copy of the decision shall also be sent to the Tahsildar of the Gudalur Taluk and to the Director of Settlements.

9.

Appeal to the Tribunal.

(1)

On receipt of an appeal preferred under sub-section (3) of section 12, the Tribunal shall cause a notice in Form No. 8 to be published requiring all persons who have applied to the Settlement Officer under section 8,9 or 10 or filed a statement before the Settlement Officer in the course of the enquiry under such section, to appear before it.

(2)

A copy of the notice shall be served on the applicant, the Tahsildar of the Gudalur taluk and every other person affected by the appeal, by sending the notice to the individual concerned by registered post.

(3)

A copy of the final order of the Tribunal shall be communicated to the appellant, the respondents and the Tahsildar of Gudalur Taluk.

10.

Vesting of buildings.

(1)

The Settlement Officer shall enquire into the claims of any person for a decision as to in whom the building shall vest under section 14 of the Act.

(2)

The provisions of rule 8 as in enquiry shall apply mutatis mutandis in regard to such claims.

(3)

The power of the Settlement Officer specified in sub-rule (1) shall "be exercisable also by the Assistant Settlement Officer subject, to revision by the Settlement Officer, the Director of Survey and Settlement and the Commissioner of Land Administration. Such revision petitions, other than, the revision to the Commissioner of Land Administration, shall be preferred within thirty days from the date of communication of the order sought to be revised and the revision petition to the Commissioner of Land Administration shall be preferred within sixty days from the date of communication of the order sought to be revised. The Commissioner of Land Administration may, at any time in his discretion, suo motu call for, examine and revise, if necessary, any order passed or proceeding recorded by the Assistant Settlement Officer, the Settlement Officer or the Director of Survey and Settlement:

Provided that the Assistant Settlement Officer, the Settlement Officer, the Director of Survey and Settlement or the Commissioner of Land Administration shall not pass any order prejudicial to any person unless he has had a reasonable opportunity of making his representations.

11.

Eviction of occupation of land not entitled to ryotwari patta in respect of it consequent on decision under section 12 or 14.

- In cases in which the Settlement Officer, the Tribunal, the Special Appellate Tribunal, the Director of Settlements or the Commissioner, Land Administration decides that the occupant of a land is not actually entitled to a ryotwari patta in respect of that land, the Tahsildar shall serve on him a notice in Form No. 9. The Tahsildar shall also take such further

steps as are necessary to evict him. Any such eviction shall be carried out in accordance with the provisions of clause (c) of sub-rule (3) of rule 4:

Provided that if the occupation is unobjectionable and if the occupant states, in writing, that he accepts the decision of the Settlement Officer, the Tribunal, the Special Appellate Tribunal, the Director of Settlements or the Commissioner, Land Administration as the case may be, that he is not entitled to a ryotwari patta in respect of the land in his occupation and that he will surrender the possession thereof to the Government when required, if the land is not assigned to him under the darkhast rules, his petition being treated as his darkhast application, he need not be evicted. The Tahsildar may allow the occupation in such cases to continue, subject to the payment of assessment on the land as determined under section 20, until orders are passed on the darkhast application or the land is required by the Government for any purpose, whichever is earlier.

12.

Liability of an unauthorised occupant of land to be proceeded against under any law.

- Nothing contained in these rules shall be construed as exempting any person unauthorisedly occupying land from liability to be proceeded against under any law for the time being in force.

13.

Procedure to be followed in cases falling under section 14,15,16,17 or 18.

- The provisions of rule 11 shall apply mutatis mutandis to cases, in which the occupant of any land is not entitled, under section 14,15,16,17 or 18, as the case may be, to remain in occupation of the land.

14.

Delegation of powers.

- The powers specified in column (2) of the Schedule below which are conferred on the Government by the sections of the Act specified in the corresponding entry in column (1) of the said Schedule may be exercisable also by any of the authorities or officers specified in the corresponding entry in column (3) thereof, subject to such control as may be specified in the said column (3) and also subject to revision by the Government.

The Schedule

Section of the Act

Powers

Authorities or officers by whom the powers
should be exercised

Section 3(d)

Power to take possession of janmam estate.

Collector of the district or such one of the
following officers as may be specified by the Collector or
Revenue Divisional Officer of the Division or Tahsildar of taluk
and any other officer of Government not below the rank of a
Revenue Inspector.

Section 9, second proviso

Power to direct that a person admitted to
possession of any land on or after 1st June 1961 be entitled to
ryotwari patta.

Settlement Officer.

Section 15, second proviso

Power to specify rights which a person admitted
into possession of any land for non-agricultural purpose on or
after 1st June 1961 shall be entitled to.

Settlement Officer.

Section 16

Power to issue direction under this section.

Settlement Officer.

Section 17(l)(a)

Power to terminate any right created before the

appointed day by the janmi.

Director of Settlements.

Section 17(2)

Power to impose reasonable restrictions on the exercise of any right continued under section 17(1) (a).

Director of Settlements.

Section 18 (2) (a)

Power to terminate any right created before 1st June 1961, for a period exceeding one year.

Director of Settlements.

Section 18(3)

Power to impose reasonable restrictions on the exercise of any right continued under section 18 (2) (a).

Director of Settlements.

Explanation. - The Commissioner, Land Administration shall have power to pass orders suo motu or on application for revision. A further revision shall lie to Government against the orders of the Commissioner, Land Administration. Revision petitions to the Commissioner, Land Administration or the Government shall be presented within sixty days of the date of the communication of the order sought to be revised.

(2)

The powers of the Settlement Officer specified in column (2) of the Schedule below under the sections of the Act specified in the corresponding entry in column (1) thereof, may be exercisable also by the officers specified in column (3) thereof.

The Schedule

Section of the Act

Powers

Authorities or officer by whom the powers should be exercised

1

2

3

Section 12 read with section 8

To decide the claim of the Janmi for the issue of Ryotwari patta.

Assistant Settlement Officer.

Section 12 read with section 9 or 10

To decide the claim of the tenant or the person based on personal cultivation for grant of ryotwari patta.

Assistant Settlement Officer or Settlement

Tahsildar.

Section 53

To decide the question regarding forests.

Assistant Settlement Officer.

15.

Determination of rent in cases falling under section 24(2).

(1)

In cases falling under sub-section (2) of section 24, where the rent which would have been payable to the janmi in respect of the fasli year in which the appointed day falls, is in kind or is a share of the produce, the quantity of such rent shall be determined by the District Collector or any officer authorised by him, on local enquiries made and with reference to the village accounts.

(2)

The rent so determined shall be commuted into cash in accordance with the prices notified by the Board of Revenue and

prevailing on the data on which the land revenue became payable:

Provided that where no such price has been notified, the rent shall be commuted in accordance with the price which the District Collector may, after making such local enquiry as he deems fit, fix as the price prevailing on the date on which the land revenue became payable.

16.

Procedure for determination of fair rent.

(1)

In respect of lands falling under section 25 (2) (a) where fair rent under the Malabar Tenancy Act, 1929 (Tamil Nadu XIV of 1930), is not fixed, the Tahsildar of the, taluk will determine the fair rent in accordance with the provisions of that Act.

(2)

Any person aggrieved by any decision of the Tahsildar may prefer a revision petition to the District Collector.

(3)

Any such petition shall be preferred within thirty days from the date of communication of the order of the Tahsildar:

Provided that the District Collector may admit a petition after the period aforesaid, if he is satisfied that the petitioner had sufficient cause for not preferring the petition within the said period.

17.

Application for a copy of the data and communication of the order, determining the basic annual sum.

(1)

An application for a copy of the data, on the basis of which the Director of Settlements proposes to determine the basic annual sum, shall be made by the Janmi or other persons interested, within two months from such date as may be notified by the Director of Settlements in this behalf.

(2)

The Director shall communicate every order passed under sub-section (1) of section 29 to every janmi concerned and also to every applicant under sub-section (2) of section 29 in the manner specified below:-

(a)

by sending the order free of cost, by registered post acknowledgement due; or

(b)

by getting the order served through the Tahsildar, Gudalur taluk;

In cases, where, the order is to be served on any janmi or any applicant, the Director shall send the order in duplicate to the Tahsildar who shall arrange to serve one copy on the person concerned after obtaining his acknowledgement of the duplicate and return the duplicate copy to the Director within fifteen days from the date of receipt of the order. Such service on the person shall be effected by giving or tendering the order to the person concerned or by affixture on his last known place of residence or of business or by giving or tendering the same to an adult member of his family.

18.

Form of payment of compensation.

(1)

The compensation payable in respect of every janmam estate shall be paid in full either in cash or in bonds or partly in cash and partly in bond issued by the Government.

(2)

(a)

If the basic annual sum in respect of a janmam estate does not exceed Rs. 5,000, the compensation shall be paid in one lump sum.

(b)

If the basic annual sum in respect of a janmam estate exceeds Rs. 5,000, but does not exceed Rs. 25,000, the compensation shall be paid in three equal annual instalments and in other cases where the basic annual sum exceeds Rs. 25,000, the compensation shall be paid in five equal annual instalments.

19.

Period within which compensation in lump-sum or first instalment need be paid.

- The compensation in respect of the janmam estate, where it is payable in one lump sum and the first instalment of the compensation where, it is payable in instalments, shall be paid not later than nine months from the date on which the settlement operations in respect of the janmam estate are completed or where the date is earlier than the date of expiry

of the period of agricultural years referred to in section 26, not later than nine months from the latter date:

Provided that where the amount of the total compensation stands altered as a result of any order under section 29, or otherwise, after the payment or payments referred to above have been made, the amount or the amounts of any deficiency in the payment or payments already made may be paid at any time, and as soon as may be after the said alteration, and the amount or amounts of any excess in the payment or payments already made by way of deposit under sections 31 and 40 may be withdrawn at any time and as soon as may be after the said alteration.

20.

Apportionment of compensation and interim payment.

(1)

As soon as may be after any amount is deposited under sections 31 and 40 in the office of the Tribunal, the Director of Settlements shall publish the fact of such deposit in the Tamil Nadu Government Gazette, with particulars of the amount is deposited, the date of deposit and name of the janmam estate to which it relates.

(2)

As soon as may be after such publication is made, the Tribunal shall publish on the notice board of its office, both in English and Tamil, a copy of the notification as published in the Tamil Nadu Government Gazette.

(3)

The fact of such deposit shall also be published on the notice board of the Taluk Office of the taluk, in which the janmam estate is situated and also in the headquarters village of the janmam estate by affixing a copy of the notice in the village chavadi or in some other conspicuous public place in the village and also by beat of tom-tom.

(4)

If there are persons, whose claims to any amount deposited previously in respect of the same janmam estate, have been recognised by the Tribunal, it shall give notice to all such persons and the expenses for issue of such notice shall be distributed among all the claimants who are before the Tribunal, within the time specified in section 32.

(5)

The Tribunal shall pass no orders regarding the apportionment of any amount so deposited with it until after the expiry of one month from the date of publication of the notification in respect of the deposit on its notice board.

(6)

No claim shall be allowed by the Tribunal except on a claim petition made to it.

(7)

The claimants and other persons interested may appear before the Tribunal in person or through Pleaders duly authorised by them in this behalf.

(8)

In the case of a janmam estate, not being an impartible tarwad governed by section 35, the value of the respective interests in the janmam estates of the janmi and the other persons mentioned in section 34(1) shall be ascertained in accordance with the following provisions.

(9)

In the case of any such janmam estate, the Tribunal shall, first determine the compensation payable in respect of the janmam estate and then proceed in accordance with sub-rule (10) in respect of the compensation payable to the principal janmi.

(10)

(a)

The Tribunal shall determine the aggregate compensation payable to all the following persons considered as a single group:-

(i)

the members of the tarwad (who are hereinafter called "sharers"); and

(ii)

other persons, who, immediately before the appointed day, were entitled to maintenance out of the janmam estate and its income under any decree or order of a Court, award or other instrument in writing or contract or family arrangement, which is binding on the janmi (who are hereinafter called, "maintenance holders"): Provided that no such maintenance-holder shall be entitled to any portion of the aggregate compensation aforesaid if, before the appointed day, his claim for maintenance or the claim, of his branch of the family for maintenance had been settled, or discharged

in full.

(b)

The Tribunal shall next determine which creditors, if any, are lawfully entitled to have their debts paid, from and out of the assets of the janmam estate and the amount, to which each of them is so entitled; and only the remainder of the aggregated compensation shall be divisible among the shares and maintenance-holders as hereinafter provided.

(c)

(i)

The Tribunal shall, in determining the amount of the compensation payable to the maintenance-holders and apportioning the same among them, have regard, as far as possible, to the following considerations, namely:-

(1)

the compensation payable in respect of the janmam estate;

(2)

the number of persons to be maintained out of that estate;

(3)

the nearness or relationship of the persons claiming to be maintained;

(4)

the other sources of income of the claimant;

(5)

the circumstances of the family of the claimant;

(ii)

for the purpose of securing that the amount of compensation, payable to the maintenance-holders is apportioned among them on an equitable basis, the Tribunal shall have power, wherever necessary, to reopen any arrangement already made in respect of the maintenance, whether by a decree or order of Court, award or other instrument in writing or contract or family arrangement.

(d)

The balance of the aggregate compensation shall, subject to the provisions of section 36, be divided among the shares as if they owned such balance as a Marumakkattayam tarwad and a partition thereof had been effected among them on the appointed day.

(11)

In respect of cases governed by section 38, rules 9 and 10 shall apply mutatis mutandis.

21.

Appeal to the Special Appellate Tribunal.

(1)

Every appeal to the Special Appellate Tribunal shall be in Form No. 10 and shall be signed by the appellant or his advocate and presented by such appellant or his advocate or the registered clerk of the advocate at the office of the Registrar of High Court, Madras, during working hours.

(2)

It shall set forth briefly the grounds of objection to the decision appealed against.

(3)

It shall be accompanied by a vakalatnama duly executed, if the appellant appears by advocate, and by a certified copy of the order appealed against and by as many authenticated copies thereof as there are respondents, together within the prescribed process fee:

Provided that in the case of an appeal preferred under sub-rule (4), the process fee, shall be paid within three days, after the delay is condoned under sub-rule (5).

(4)

Where an appeal is preferred after the period of limitation prescribed therefor in sub-section (1) of section 41, it shall be accompanied by a petition for condoning the delay. The petition shall be supported by an affidavit setting forth the grounds on which the applicant relies to satisfy the Tribunal that he had sufficient reason for not preferring the appeal within such period.

(5)

The petition shall then be posted for orders before the judges, nominated for the purpose under sub-section (1) of

section 41.

(6)

As soon as the appeal is numbered, it shall be placed before the Registrar for orders as to issue of notice and preparation of the record for the hearing of the appeal.

(7)

The record of the case for the use of the Special Appellate Tribunal shall consist of all material papers on which either party proposes to rely at the hearing of the appeal.

(8)

Unless otherwise ordered by the judges or the Registrar at the instance of a party, the record shall be translated, if need be, and typed at the office of the Registrar and the charges therefor shall be calculated at the rates prescribed in the Appellate Side Rules of the High Court.

(9)

In case the record is to be prepared at the office of the Registrar, the appellant shall, within two weeks after the receipt of an office memorandum to that effect, pay into the Registrar's office such charges, as may be specified in the said office memorandum.

(10)

The respondent shall, within three weeks from the date of service of the notice of appeal on him, obtain the direction of the Registrar as to the preparation of the record and shall pay the charges therefor within such time, as may be fixed by the Registrar.

22.

Award of costs.

(1)

No costs, by way of process fee, pleader's fee and witness batta shall be allowed in proceedings before a Tribunal and Special Appellate Tribunal in cases where the claim is uncontested or is decreed on admission or compromised.

(2)

Where a claim is contested before a Tribunal or the Special Appellate Tribunal, but is allowed in whole or in part, costs shall be allowed to the claimant or the appellant in proportion to his success against contest and the contesting party or the respondent shall pay such costs to the claimant or the appellant.

(3)

In the event of any claim before a Tribunal or the Special Appellate Tribunal being dismissed wholly or in part, costs shall be allowed to the contesting party or the respondent in proportion to his success.

(4)

In cases of frivolous or vexatious claims or defences, costs shall be allowed also by way of compensation as laid down in section 35-A of the Code of Civil Procedure, 1908 (Central Act V of 1908).

(5)

Where costs are awarded by a Tribunal or the Special Appellate Tribunal, the order for costs shall be executable by Civil Court having jurisdiction over the area with reference to which the Tribunal or the Special Appellate Tribunal gave its decision, as if it were a decree passed by that Court.

23.

Procedure to be adopted in the case of proceedings before the Judges of High Court.

- The provisions of rules 21 and 22 shall, as far as may be, apply to the proceedings before Judge or Judges of the High Court hearing a case under subsection (2) of section 41.

24.

Mode of entertaining appeal or revision petitions, enquiry thereof and grant of stay.

(1)

Every appeal or revision petition under the Act or these rules shall be accompanied by a duly authenticated copy of the order appealed against or sought to be revised.

(2)

In respect of any order passed under the Act, which is subject to appeal or revision, the appellate or revisional authority, as the case may be, may suspend the execution of the order, pending its decision on the appeal or in revision.

(3)

Notice of hearing of any appeal or revision as the case may be, shall be given to the appellant or revision petitioner and the respondent or respondents and to the other persons interested, if any.

(4)

Before passing orders on every appeal, or revision petition, the parties concerned shall be given a reasonable opportunity of being heard.

(5)

A copy of the final order in any appeal or revision shall be communicated to the appellant or revision petitioner and the respondent or respondent and other persons interested, if any, or the counsel concerned, if any of them is represented by counsel, by registered post and also the Tahsildar of the taluk and the Settlement Officer.

Explanation. - For the purposes of this rule "persons interested" means the janmi of the janmam estate or part thereof in which the land is situated and includes any other person claiming an interest in the compensation payable for the janmam estate or part thereof.

25.

Time barred application, appeal or revision petition to be dismissed.

(1)

Subject to the provisions of the Act and these rules, every application made and every appeal and revision petition presented to the authorities or officers having, jurisdiction under the Act and these rules, after the period of limitation prescribed therefor in the Act and these rules, shall be dismissed although limitation has not been set up as a defence.

(2)

No such application made or appeal and revision petition filed shall be admitted after the prior of limitation prescribed therefor in the Act and these rules on the ground that the applicant or the appellant or the petitioner had sufficient cause for not preferring the application or appeal or petition within such period.

26.

Extend or boundaries of land covered by orders of any authority under Act.

- The extent of boundaries of the land covered by any order passed by any authority or officer in any proceedings under the provisions of this Act shall be subject to any changes, consequent on the determination of the fair area and map plotting by the survey authorities.

27.

Power to issue summons.

- The Settlement Officer, the Assistant Settlement Officer, the Tahsildar and any other Officer working under the Settlement Officer, Assistant Settlement Officer and the Tahsildar shall have powers to issue summons to any person either for appearance or for production of documents in connection with the enquiries into questions pending before such officer under the Act and such person shall be bound to obey such summons. The form of summons shall be that used by Revenue Courts.

28.

Manner of service and publication of notices and orders under the Act or the rules.

(1)

Any notice or order issued or made under the Act or under these rules shall be served on the person concerned in the following manner, namely:-

(a)

by delivering or tendering the notice or order to the person concerned or his counsel or authorised agent or an adult member of his family; or

(b)

by sending the notice or order to the persons concerned by registered post acknowledgement due; or

(c)

if none of the aforesaid modes of service is practicable, by affixing the notice or order in some conspicuous part of the last known place of residence or business of the person concerned.

(2)

Any notice or order, which is intended for publication, for general information shall, in addition to the Special modes of publication prescribed in these rules, also be published by affixture in the village chavadi of the village in which the janmam estate is situated and if there is no village chavadi, in any conspicuous public place in the village, and by

announcing the fact of such publication by beat of tom-tom in the village. The village officer shall certify to the place and date of publication and the said date shall be deemed to be the date of communication of the notice or order, as the case may be, within these rules to the parties concerned.

29.

Deposit in District Court of unclaimed and un-disbursed amount deposited with the Tribunal.

(1)

-(a) All amounts deposited in the office of the Tribunal under sub-section (1) of section 31 and sub-sections (4) and (7) of section 40 and remaining unpaid and with reference to which no claim has been made within the time specified in sub-section (1) of section 32 or no application for payment has been made within the time specified in section 44; and

(b)

all amounts deposited as aforesaid and remaining unpaid after the expiry of a period of six months from the date of disposals of the application under section 44 shall be withdrawn by the Tribunal and be deposited in the District Court having jurisdiction over the janmam estate.

(2)

As soon as any amount is withdrawn by the Tribunal from its personal deposit or other account and deposited in the District Court having jurisdiction under sub-section (1) of section 45, the Tribunal shall publish the fact of such deposit in the District Gazette concerned in Form No. 11.

The Tribunal shall also cause a copy of the notice board of its office. It shall also send a copy of the notification to the District Judge, the Settlement Officer, the District Collector and the Tahsildar, who shall cause it to be affixed on the notice boards of their respective offices and send a certificate of such publication to the Tribunal.

(3)

On the transfer of the amount from the personal deposit or other account of the Tribunal to the Account of the District Court, it shall be charged off as an expenditure in the account of the Tribunal.

30.

Form in which claim should be made.

- Every person making a claim to, or enforceable against, any amount held in deposit by the District Court shall apply in Form No. 12.

31.

Levy of process fee, award of costs, etc.

- In respect of the levy of process fees, the award of costs including costs by way of compensation for frivolous or vexatious claims or defences, the pleader's fee and witness batta, the District Court shall follow the rules applicable to the Tribunals.

32.

Procedure for dealing with amounts transferred to deposit of the District Court.

- The amount transferred to the deposit of the District Court shall be finally dealt with in accordance with the procedure laid down in rules 51 to 60 in Chapter III of Part I of the Civil Rules of Practice and Circular Orders (Volume II).

33.

Application for a copy of the data by pattadar, etc.

- Every application for a copy of the data on the basis of which the Settlement Officer proposes to determine the contribution payable by each pattadar shall be made by any pattadar or other person interested, within two months from the date of publication in the Tamil Nadu Government Gazette, of a notification by the Settlement Officer that he proposes to determine the contribution payable.

34.

Publication of fact of determination of contribution.

- As soon as may be after the determination of the contribution payable by a Pattadar under section 47 of the Act, the Settlement Officer shall publish the fact of such determination in the Tamil Nadu Government Gazette, with full particulars of the contribution.

35.

Recovery of contribution.

- The annual instalments of contribution payable by every' pattadar shall be payable to the Tahsildar in cash in the first kist month of every fasli year. The first annual instalment shall be payable in the first kist month of the fasli year

succeeding that in which the Settlement Officer determines the contribution payable by? the pattadar under section 47.
36.

Transfer of title.

- Notice shall be given in Form No. 13 to the Settlement Officer or Tahsildar of Gudalur taluk on introduction of settlement by every transferor and transfers under sub-section (1) of section 50 of the Act or by any person to whom the title of a deceased person shall be transferred as heir or otherwise under sub-section (2) of that section.

37.

Decision of questions regarding forests.

(1)

The Settlement Officer shall determine questions regarding forests under section 53 either suo motu or an application.

(2)

Any person requiring a decision under section 53 shall apply to the Settlement Officer in Form No. 14.

(3)

Except, where the application is on behalf of Government, it shall be signed and verified by the applicant.

(4)

Every such application shall be restricted to the lands in a holding of a janmam estate in a single village.

(5)

Every such application shall be presented in person or sent by registered post.

(6)

As many copies of the application, as there are respondents with one additional copy for the Tahsildar of the Taluk in which the land is situated, shall be filed with the application

(7)

On receipt of the application, the Settlement Officer shall fix a date for hearing and issue notice in Form No. 15 to the applicant, the respondents and the Tahsildar of the Taluk. A copy of the application shall be sent along with the notice.

(8)

The Settlement Officer shall make a summary enquiry into the application and give his decision in writing, after giving the parties a reasonable opportunity for adducing evidence

(9)

A copy of the order shall be served on the applicant and on each of the respondents. A copy shall also be sent to the Officer immediately superior to the Officer making the enquiry and to the Tahsildar of the taluk.

38.

Appeal to Director of Survey and Settlements.

(1)

Every appeal against an order of the Settlement Officer under section 53 shall be presented to the Director of Survey and Settlement within thirty days from the date of receipt of the order.

(2)

On receipt of the appeal, the Director of Survey and Settlement shall fix a date for hearing and issue notice in Form No. 16 to the parties concerned. He shall give them a reasonable opportunity of being heard before passing orders.

(3)

[The Director of Survey and Settlement, Madras, may of his own motion, call for and examine the record of the Settlement Officer in respect of any proceedings under section 53 of the Act, to satisfy himself as to the regularity of such proceedings, or the correctness, legality or propriety of any decision passed or order made therein; and, if, in any case, it appears to the Director of Survey and Settlement that any such decision or order should be modified, omitted, reversed or remitted for reconsideration, he may pass order accordingly.]

[Added by G.O. Ms. No. 1, C. T. & R. E., dated the 2nd January 1986.]

39.

Revision by the Commissioner, Land Administrations.

(1)

Every revision against the orders of the Director of Survey and Settlements under section 53 shall be preferred to the Commissioner, Land Administrations within thirty days from the date of receipt of the order.

(2)

On receipt of the revision petition, the Commissioner, Land Administrations shall fix a date for hearing and issue notice in Form No. 17 to the parties concerned. He shall give them a reasonable opportunity of being heard before passing orders.

(3)

[The Commissioner of Land Administration may of his own motion call for and examine the record of the Settlement Officer/Director of Survey and Settlement in respect of any proceedings under section 53 of the Act to satisfy himself as to the regularity of such proceedings, or the correctness, legality or propriety of any decision passed or order made therein; and, if, in any case, it appears to the Commissioner of Land Administration that any such decision or order should be modified, omitted, reversed or remitted for reconsideration, he may pass order accordingly.]

[Added by G.O. Ms. No. 1, C. T. & R. E., dated the 2nd January 1986.]

40.

Court-fees and process fees payable.

(1)

The Court-fee of the documents specified in column (2) of the table below, under the section specified in column (1) of the said table, shall be the amount specified in the corresponding entry in column (3) thereof:-

The Table

Section

Description of document

Court-fee (Rs.)

1

2

3

Section 6(c)

Revision petition to the Commissioner, Land Administrations

2

Section 12

Application to the Settlement Officer Appeal to the Tribunal. Application to the Tribunal Vakalatnama to the Tribunal

0.75 2.00

Sections 9,14, 15 and 16

Application to the Settlement Office

Section 29(6)

Appeal to the Commissioner, Land Administrations.

2

Section 41(1)

Memorandum of appeal to the Special Appellate Tribunal-

(a) if the claim does not exceed Rs. 3,000

15

(b) if the claim exceed Rs. 3,000 but does not exceed Rs. 10,000

100

(c) if the claim exceeds Rs. 10,000

Interlocutory application to the Special Appellate Tribunal

2

Vakalatnama to the Special Appellate Tribunal

3

Section 45(3)

Application to the District Court -

5

(a) if the claim does not exceed Rs. 100

(b) if the claim exceeds Rs. 100

10

Section 53

Application to the Settlement Office

0.75

Appeal to the Director of Settlements

1

Revision petition to the Commissioner, Land Ad
ministrations.

1.5

Explanation. - No Court-fee need be paid in the case of appeals filed on behalf of the Government.

(2)

In proceedings before the Tribunal, process fees shall be paid at the rates prescribed for the District Court on processes issued at the instance of parties. In proceedings before the Special Appellate Tribunal, process fees shall be paid in accordance with the process fees prescribed under section 80 of the Tamil Nadu Court-Fees and Suits Valuation Act, 1955. The rates of process fees leviable for service of notice and summons on respondents and witnesses and for production of records shall be as follows:-

(i)

for service of notice or summons on a single
person.

1.5

(ii)

for service of notice or summons on every
additional person residing in the same village if applied for at
the same time

0.75

41.

Fees to pleaders.

- The following principles shall be adopted in fixing the fees to pleaders for work connected with the proceedings under the Act before the Special Appellate Tribunal and the Tribunal:-

(1)

Fees payable to pleaders for appearance before the Special Appellate Tribunal. - The Special Appellate Tribunal shall, for taxation, fix the fees payable to pleaders, for work connected with the proceedings before it, in the same manner in which the High Court fixes advocate's fee for taxation in appeals against the orders of lower Courts, irrespective of the fact whether it allows costs to any of the contesting parties or not:

Provided that in respect of a batch of connected cases, in which the results are determined by a single case, only one regulation fee shall be fixed.

(2)

Fees payable to pleaders for appearance before the Tribunal. -

(a)

The Tribunal shall fix the fees payable to pleaders for work connected with the following original proceedings before them so as not to exceed 500 in ordinary cases and Rs. 1,000 in important cases;

(i)

Proceedings connected with the apportionment of compensation under section 34;

(ii)

Proceedings connected with the apportionment of interim payment under sub-section (4) of section 40;

(iii)

Proceedings connected with the division of the lands in respect of which a ryotwari patta has to be granted under section

37:

Provided that in respect of a batch of connected cases in which the result is determined by a single case, only one regulation fee shall be fixed.

(b)

(i)

The Tribunal shall fix the fees payable to Pleaders for work connected with proceedings under the other provisions of the Act on the following basis, namely: -

(1)

for appearance before the Tribunal and for preparation of the case- A fixed fee of Rs. 15 for each case in respect of appeals under sub-section (3) of section 12.

(2)

for appearance before the Tribunal for arguments in respect of appeals under sub-section (3) of section 12 -

(a)

if the time taken does not exceed 3 hours, a fixed fee of Rs. 15 for each case;

(b)

if the time taken exceeds three hours, but does not exceed 6 hours, a fixed fee of Rs. 30 for each case; and

(c)

if the time taken exceeds 6 hours, a fixed fee of Rs. 50 for each case:

Provided that in respect of a batch of connected cases under sub-section (3) of section 12, in which the result is determined by a single case, the Tribunal shall fix one regulation fee only.

(ii)

The Tribunal shall fix the fees payable to each of the Pleaders, by its orders irrespective of the fact whether it allows any costs to any of the contesting parties or not.

(3)

Fees to Law Officers before the Special Appellate Tribunal. - The Special Appellate Tribunal shall fix the Advocates' fee for taxation in the same manner in which the High Court does in the case of appeals against the orders of the lower Courts.

The Special Appellate Tribunal shall fix the fee payable to the pleaders in each case in its order irrespective of the fact whether it allows costs or not.

Form No. 1

[See rule 4(3) (a) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974]

Office of the Tahsildar of Gudalur Taluk

Current No.....

To

Thiru.....residing at.....village.....taluk.

Whereas you are reported to be in occupation of the land specified in the Schedule hereunder which Vests in the Government under section 3(b) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Act, 1969 (Tamil Nadu Act

24 of 1969

) and whereas there are grounds to believe that you are not prima facie entitled to a ryotwari patta in respect of the said land and that your occupation is objectionable, you are hereby given notice that if you so desire, you may appear before me on [(date)]

[The date should be at least seven days after the date of service of the notice.]

at(time) at.....(place), or show cause, in writing before that date, why you should not be dispossessed of the said land under the proviso to section 3(d) of the said Act.

Tahsildar.

The Schedule

District and Taluk

Name of Janmam Estate

Name of village

Survey No. and subdivision Number, if surveyed or

local name, if unsurveyed

Entire extent of the survey Number or subdivision

Description of the land

Occupied extent

Boundaries of land occupied North. East. South
and West

Classification

Nature of occupation

Name of occupant

1

2

3

4

5

6

7

8

9

10

Tahsildar.

Form No. 2

[See rule 4(3)(b) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974]

Proceedings of the Tahsildar of Gudalur Taluk

No

Date

Whereas the land specified in the Schedule hereunder has been under the occupation of Thiru.....residing at.....

And Whereas in pursuance of rule 4(3)(b) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974.1,....., Tahsildar of Gudalur Taluk do hereby consider that the said occupant is not prima facie entitled to a ryotwari patta in respect of the said land; and

And Whereas I Tahsildar of Gudalur Taluk consider that the occupation is objectionable, the said occupant will be dispossessed of the said land after the lapse of the time limit in rule 4(3)(c).

The Schedule

District and Taluk

Name of Janmam Estate

Name of village

Survey No. and subdivision Number, if surveyed or

local name, if unsurveyed

Entire extent of the survey Number or subdivision

Description of the land

Occupied extent

Boundaries of land occupied North. East. South
and West

Classification

Nature of occupation

Name of occupant

1

2

3

4

5

6

7

8

9

10

Tahsildar.

Form No. 3

[See rule 4(4) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974]

Proceedings of the Tahsildar of Gudalur Taluk

No.

Date

Whereas the land specified in the Schedule hereunder has been under the occupation of Thiru
residing at

And Whereas in pursuance of rule 4(4) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974. I,, Tahsildar of Gudalur Taluk do hereby declare that the said occupant, namely, Thiruis not prima facie entitled to a ryotwari patta in respect of the said land;

And Whereas I,the Tahsildar of Gudalur taluk consider that the occupation is not objectionable, the occupant Thiru will be allowed to be in occupation of the land, subject to the payment of assessment on the land, until the ryotwari settlement of the land under section 20 or until the land is inquired by the Government for any purpose, whichever is earlier.

Explanation. - The payment of the assessment shall not confer on the occupant any right of occupancy in respect of the land.

The Schedule

>

District and Taluk

Name of Janmam Estate

Name of village

Survey No. and subdivision Number, if surveyed or
local name, if unsurveyed

Entire extent of the survey Number or subdivision

Description of the land

Occupied extent

Boundaries of land occupied North. East. South
and West

Classification

Nature of occupation

Assessment

Name of occupant

1

2

3

4

5

6

7

8

9

10

11

Tahsildar.

Form No. 4

[See rule 8(1) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974]

Form of Application:

Name of the Janmam Estate:

Name of the Janmi/tenant/cultivator:

Address of the Janmi/tenant/cultivator:

(List of lands in respect of which the janmi /tenant/cultivator claims ryotwari patta)-

1. Serial Number:

2. Name of district:

3. Name of Taluk:

4. Name of village:

5. Local name, if any, of the land:

6. Survey number and sub-division (if surveyed):

7. Extent (in acres and cents or local measurements):

8. Classification, whether wet or dry:

9. Survey Numbers of adjacent lands:

North:

East:

South:

West:

10. Provision of law under which the claim is preferred:

11. Summary of the evidence proposed to be adduced:

12. Remarks:

Place:Date:

Signature of janmi/tenant/cultivator.

Note. - A separate form should be used for each village in the janmam estate.

Form No. 5

[See rule 8(4) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974]

Notice is hereby given to Thiru.....Janmi/tenant/cultivator of Janmam estate that the Assistant Settlement Officer/Settlement Officerwill hold an enquiry into the nature and history of the land mentioned in the Schedule below, in respect of which it is proposed to decide his claim for the grant of ryotwari patta on (date) at (time) in (place), and on subsequent dates at time and place that will be intimated. He may produce any record or make any representation which he may wish to make, before the Assistant Settlement Officer/Settlement Officer at the enquiry.

Assistant Settlement Officer. _____ Settlement Officer.

The Schedule

Name of the District:

Name of the Taluk:

Name of the Village:

Name of the Janmam Estate:

Survey Number and subdivision number

Classification

Extent (Acre.)

Boundaries

Name of the claimant

Section of the Tamil Nadu Act

24 of 1969

under

which patta is proposed to be given

Section of the Tamil Nadu Act

24 of 1969

under

which the claim is to be dealt with

1

2
3
4
5
6
7

To

Thiru Janmam/tenant/cultivator in duplicate through the Tahsildar of.....taluk, for causing service, at least, fifteen days prior to the date of hearing obtaining acknowledgement and returning the original before the date of hearing.

The Tahsildar of.....taluk (in duplicate) for causing publication in the village.....at least fifteen days prior to the date of hearing by affixture in the village chavadi or in any conspicuous, public place in the village which should be specified and announcing the fact by beat of tomtom and for returning the original with the following certificates:-

Certificate

Certified that this notice was published by affixing a copy thereof in the village chavadi (or some conspicuous place to be mentioned) and by announcing the fact by beat of tom-tom on and in token thereof signature of the villagers have been obtained.

Place:Date:

[Signature of the Village Headman]

[Now these posts were abolished and in their place Village Administrative Officers are appointed.]

[Signature of the Karnam]

[Now these posts were abolished and in their place Village Administrative Officers are appointed.]

.

Form No. 6

[See rule 8(5) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Act, 1974]

Notice is hereby given to all those to whom it may concern that in respect of the land mentioned in the Schedule, it is proposed to decide the claim for the grant of ryotwari patta to the person and under the section of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Act, 1969 (Tamil Nadu Act

24 of 1969

) specified against each land. The Assistant Settlement Officer/ Settlement Officer will hold an enquiry into the nature and history of the lands on.....(date) at.....(time) in..... (place) and on subsequent dates at time and place that will be intimated.

Any person who has any objection to any of the proposals to grant ryotwari patta may file before the Assistant Settlement Officer/Settlement Officer, a statement of his objection within a week from the date of this notice. The objections should be supported by a summary of evidence and all available documents.

All persons interested are hereby advised to be present at the enquiry, either in persons or through an authorised representative, and make their representations All such objections and representations and other available records and evidence will be taken into consideration and suitable orders will be passed by the Assistant Settlement Officer/Settlement Officer.

In the absence of any such objection or representation, the Assistant Settlement Officer/Settlement Officer will conduct such enquiry as he may deem necessary on the basis of the available records and evidence. In the event of the absence of any interested person, the enquiry, will be conducted and decided ex parte. The [village headman]

[Now these posts were abolished and in their place Village Administrative Officers are appointed.]

and [the karnam]

[Now these posts were abolished and in their place Village Administrative Officers are appointed.]

shall be present at the enquiry.

Place:Date:

Assistant Settlement Officer.

Name of the District:

Name of the Taluk:

Name of the Village:

Name of the Janmam Estate:

Survey Number and sub-division

Classification

Extent (Acres)

Boundaries

Name of the claimant

Section of the Tamil Nadu Act

24 of 1969

under

which patta is proposed to be given

1

2

3

4

5

6

To

Thiru.....(name of party) (in duplicate) through the Tahsildar of Gudalur Taluk for causing service at least fifteen days prior to the date of hearing, obtaining acknowledgement and returning the original before the date of hearing.

The Tahsildar of taluk (in duplicate) for causing publication in the village.....at least fifteen days prior to the date of hearing by affixture in the village chavadi or in any conspicuous public place in the village which should be specified and announcing the fact by beat of tomtom and for returning the original with the following certificates:-

Certificate

Certified that this notice was published by affixing a copy thereof in the village chavadi.....(or some conspicuous place to be mentioned) and by announcing the fact by beat of tom-tom on and in token thereof signature of the villagers have been obtained.

Place:Date:

[Signature of the Village Headman]

[Now these posts were abolished and in their place Village Administrative Officers are appointed.]

[Signature of the Karnam]

[Now these posts were abolished and in their place Village Administrative Officers are appointed.]

.

Form No. 7

[See rule 8(8) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974]

It is hereby notified for the information of all concerned that under section read with section of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Act, 1969 (Tamil Nadu Act

24 of 1969

), the Assistant Settlement Officer/Settlement Officer has decided that in respect of the lands mentioned in the Schedule, the persons specified against each land in column (5) of the Schedule is entitled to ryotwari patta. Any person aggrieved by this decision may prefer an appeal to the Tribunal within three months, a revision to the Settlement Officer/Director of Settlements within thirty days from the date of decision.

Assistant Settlement Officer.Settlement Officer.

The Schedule

Name of the District

Name of the Taluk

Name of the Village

Name of the Janmam Estate

Survey Number and sub-division

Classification

Extent (Acres)

Boundaries

Name of the persons to whom ryotwari patta is allowed

Section of the Tamil Nadu Act

24 of 1969

under which

patta is proposed to be given

1

2

3

4

5

6

To

The Tahsildar of Gudalur taluk (in duplicate) for causing publication by affixture in the village chavadi or in some conspicuous public place in the village which should be specified and announcing the fact by beat of tom-tom and for returning the original with the following certificates:-

Certificate

Certified that this notice was published by affixing a copy thereof in the village chavadi (or some conspicuous place to be mentioned) and by announcing the fact by beat of tom-tom on.....; and, in token thereof signature of the villagers have been obtained.

Place:Date:

[Signature of the Village Headman]

[Now these posts were abolished and in their place Village Administrative Officers are appointed.]

. [Signature of the Karnam]

[Now these posts were abolished and in their place Village Administrative Officers are appointed.]

.

Form No. 8

[See rule 9(1) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974]

Notice is hereby given that an appeal from the decision of the Settlement Officer under section 12(1) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Act, 1969 (Tamil Nadu Act

24 of 1969

) has been presented by and admitted by the Tribunal and has been posted for hearing on the day of 20 at (place);

All persons who have preferred claims before the Settlement Officer/Assistant Settlement Officer under section 8, 9 or 10 or filed statements during the enquiry before him are hereby called upon to appear before this Tribunal on the date at the place specified above and file their further statements, if any, in the matter.

A copy of the appeal petition is appended hereto.

Tribunal.

To

.....

.....

The appellant in duplicate through the Tahsildar of Gudalur taluk for causing service at least fifteen days prior to the date of hearing, obtaining the acknowledgement and returning the original before the date of hearing.

The Tahsildar of Gudalur taluk (in duplicate) for causing publication in the village of.....at least fifteen days prior to the date of hearing by affixture in the village chavadi or in any conspicuous public place in the village, which should be specified, announcing the fact by beat of tom-tom and returning the original with the following certificate:-

Certificate

Certified that the notice was published by affixing copy thereof in the village chavadi (or some conspicuous place to be mentioned) and by announcing the fact by beat of tom-tom on; and, in token thereof signatures of villagers have been obtained.

Place:Date:

[Signature of the Village Headman]

[Now these posts were abolished and in their place Village Administrative Officers are appointed.]

[Signature of the Karnam]

[Now these posts were abolished and in their place Village Administrative Officers are appointed.]

.

Form No. 9

[See rule 11 of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974]

Office of the Tahsildar of Gudalur taluk

Place:Dated:

To

Thiru.....

residing at.....

village.....

taluk.....

Where as it has been decided by the Assistant Settlement Officer/ Settlement Officer/Tribunal/Special Appellate Tribunal/Director of Settlements/[Board of Revenue]

[The Board of Revenue was abolished by the Tamil Nadu Board of Revenue Abolition Act, 1980 (Tamil Nadu Act 36 of 1980

). Now, Commissioner of Land Administration, vide G. O. Ms. No. 2675, Revenue, dated the 1st December 1980.]

that you are not entitled to a ryotwari patta in respect of the land in your occupation mentioned in the Schedule hereunder, you are hereby required to vacate the land within seven days from the date of service of this notice failing which you will be evicted from the land.

Take notice also that the Revenue Inspector, Firka.is hereby authorised to carry out the orders of eviction and to take possession of the land.

The Schedule

District and Taluk

Name of Janmam Estate

Name of village

Survey No. and subdivision Number, if surveyed or
local name, if unsurveyed

Entire extent of the survey Number or subdivision

Description of the land

Occupied extent

Boundaries of land occupied North. East. South
and West

Classification

Nature of occupation

Name of occupant

1

2

3

4

5

6

7

8

9

10

Tahsildar,

Copy to the Revenue Inspectorfor eviction and report.

Firka.

Form No. 10

[See rule 21(1) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974]

Form of Memorandum of appeal under the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Act, 1969
(Tamil Nadu Act
24 of 1969

)

Before the Special Appellate Tribunal

Appeal No.....of 20

(A.B.).....Appellant

(C.D.) etc.....

The above named appeals to the Special Appellate Tribunal from the decision of the Tribunal No..... dated the
and in Application/Petition No.....of 20 and set forth the following grounds of objections to the said decision
appealed from, viz.

(Here set out the grounds).

Signature of the appellant.

Form No. 11

[See rule 29(2) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974]

Particulars of amounts deposited in the District Court of by the Tribunal under section 45(1) of the Gudalur Janmam
Estates (Abolition and Conversion into Ryotwari) Act, 1969 (Tamil Nadu Act

24 of 1969

)

1. Name of the Janmam Estate.

2. Nature of the amount deposited (whether
compensation or Interim payment).

3. Amount deposited.

4. Date of original deposit with the Tribunal.

5. (1) Whether unclaimed or undisbursed ?

(2) If undisbursed -

(a) Number and date of the order in which the payment was ordered
by the Tribunal or the Special Appellate Tribunal.

(b) Name of the person, in whose favour the order for payment was
made; and

(c) Amount ordered for payment. (Rs. P.)

6. Remarks:

Place:Date:

Form No. 12

[See rule 30 of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974]

Form of Application to be Made to the District Court Under Section 45(3) of the Gudalur Janmam Estates (Abolition and
Conversion into Ryotwari) Act, 1969 (Tamil Nadu Act

24 of 1969

)

1. Name of the applicant and full address.

2. Name of the janmam estate, to which the claim
relates.

3. Date and page of the District Gazette, in
which the notification regarding the deposit of the amount with
the District Court was published.

4. (a) Nature of the
amount in deposit (whether compensation or interim payment).

(b) Whether the application is in respect of unclaimed amount or
undisbursed amount.

5. Nature of interest held.

6. Details of claim and the provision of law

under which the applicant is entitled to the amount held in deposit.

7. The amount claimed out of the total amount deposited in the District Court by the Tribunal.

8. Reasons for the delay in preferring the, application, if any.

9. In the case of undisbursed amounts, particulars of orders passed by the Tribunal, the Special Appellate Tribunal in respect of which an application for payment under section 44 should have been prepared.

(i) Number and date of order of Tribunal or Special Appellate Tribunal.

(ii) Nature of the amount (compensation or interim payment),

(iii) Amount ordered for payment.

(iv) Name of the person in whose favour an order of payment was passed.

(v) Remarks.

(Rs. P.)

10. Is the original or a certified copy of the order of the Tribunal or Special Appellate Tribunal enclosed?

11. Summary of the evidence proposed to be adduced in support of the claim.

12. Any other information relevant to this application.

Place:Date:

Signature of the applicant

Form No. 13

[See rule 37(2) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974]

Form of Notice to be Given Under Section 50 of the Act

1. Name of the Janmam Estate

2. Name and address of the transferor

3. Local Name, if of the transferee

4. Nature of the transfer -

(a) Whether by way of transfer falling under section 50(1) of the Act

(b) Whether by succession falling under section 50(2) of the Act

5. The particulars of land involved in the transfer:

Serial Number

Survey Number or sub-division No.

Extent

Assessment of the field

Classification of the land

1

2

3

4

5

6. Particulars of documents evidencing such transfer or succession

7. Remarks

Place:Date:

Signature of transferor. Signature of transferee.

To

The Settlement Officer/Tahsildar, Gudalur taluk.

Form No. 14

[See rule 37(2) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974]

Form of Application Under Section 53 of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Act, 1969 (Tamil Nadu Act

24 of 1969

)

1

Name of the applicant and his address.

2

Name of the janmam estate in which the land or forest in dispute lies.

3

Local Name, if any, of the land or forest in dispute.

4

Extent.

5

Nature of the dispute' and relief sought.

Place:Date:

Signature of the applicant.

Form No. 15

[See rule 37(7) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974]

Before the Settlement Officer

Name and address of the applicant.....

Name and address of respondent.....

Application, dated

Take notice that the applicant mentioned above has applied to me for a decision under section 53 of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Act, 1969 (Tamil Nadu Act

24 of 1969

) in respect of the land mentioned in the copy of the application which is sent herewith. The application is posted for hearing on.....(date) at (time) (place). You are hereby required to appear before me, in person or by-pleader, at the time, and place aforesaid, failing which orders are liable to be passed ex parte.

Place:Date:

(Seal)

Settlement Officer.

Form No. 16

[See rule 38(2) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974]

Before the Director of Settlements

Name and address of the applicant.....

Name and address of the respondent.....

Notice, is hereby given that an appeal against the decision of the Settlement Officer under section 53 of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Act, 1969 (Tamil Nadu Act

24 of 1969

) has been presented by and admitted by the Director of Settlements and has been posted for hearing on (date) at..... (time) in (place).

All persons, who have applied to the Director of Settlements under section 53 of the said Act or filed statements during the appeal before him are hereby called upon to appear before the Board of Revenue at the time and place specified above and file their further statement, if any, in the matter.

Place:Date:

(Seal)

Director of Settlements.

Form No. 17

[See rule 39(2) of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Rules, 1974]

Before the Commissioner, Land Administration

Name and address of the applicant.....

Name and address of the respondent.....

Notice is hereby given that a revision against the decision of the Director of Settlements under section 53 of the Gudalur Janmam Estates (Abolition and Conversion into Ryotwari Act, 1969 (Tamil Nadu Act

24 of 1969

) has been presented by and admitted by the Commissioner, Land Administration and has been posted for hearing on section 53 of the said Act or filed statements during the enquiry before him are hereby called upon to appear before the Director of Settlements at the time and place specified above and file their further statement, if any, in the matter.

All persons who have applied to the Settlement Officer under (date) at (time) in.....(place).

Place:Date:

(Seal)

Commissioner, Land Administration.

Related AI tags, queries and research notes

Translation